



Tammy Buchanan <tammy.buchanan@dataprotection.education>

DPE Meeting Follow up information : SFET

1 message

Tammy Buchanan <tammy.buchanan@dataprotection.education>

22 May 2023 at 17:03

To: Claire Booth <cbooth@sfet.org.uk>, Claire Buckton <cbuckton@sfet.org.uk>, charnden@sfet.org.uk, acarter@sfet.org.uk

Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Hello all,

Thank you for your time today. It was really appreciated. Please thank Ester for showing me around her school.

Following our conversations this morning, please find below the information discussed:

Staff Knowledge Bank View:

Everything that a staff member will see:

On the Dashboard:

- the e-learning that they are enrolled in or completed
- Any to-do's they have been set
- Training certificates
- Assigned documents (if there are any)
- Breach log - which they can click on and add a data breach
- Checklist items

They would also have access to:

- The Best Practice Libraries
- All training courses
- News items
- Resources such as posters, guidance documents and policies, user guides

Training

Some key training points for data protection are:

- you should have an all-staff data protection and information governance training programme
- it should include induction and refresher training for all staff
- specialised roles or functions with key data protection responsibilities should receive additional training beyond the basic level
- you should regularly raise awareness across your organisation of data protection and information governance - you should make it easy for staff to access relevant material

The details from the ICO about how often staff should receive their training:

New starters need data protection training within a month, and before accessing any personal data.

You should provide refresher training to all workers at regular intervals. ***Ideally you should provide it annually, but it should not exceed two years.***

If anyone needs additional support – for example, if you assess their knowledge and they get a low score - provide further training. Don't wait until the next scheduled refresher training.

Full details here: <https://ico.org.uk/for-organisations/sme-web-hub/checklists/do-you-know-what-to-include-in-your-data-protection-training/>

CPOMS/Safeguarding data:

CPOMS is a tool for collecting safeguarding data, however, just because something resides in a particular file or system, doesn't make it exempt. I spoke to James about the statement from Satswana that you gave to me and he responded:

The exemption cited is accurate, but it does not always apply just because something is "safeguarding". No exemption can be applied as an umbrella, each case must be looked at individually and legitimate harm must be identified. We can sometimes identify risk, but ultimately the DSL in the school may have more information and first-hand knowledge of a particular situation.

For example, in a safeguarding file there is information that the family is supported by a social worker because they have been adopted and the child was previously looked after by the local authority. This information would rightly be in CPOMS, but unlikely to cause any harm to the adoptive parents if requested.

In relation to child abuse data, again, this may also be related to the reason why the child was placed in care. The question is whether the disclosure would cause harm to the individual to which it is being disclosed. An adoptive family may know some history, and the disclosure may not result in the likelihood of harm. But I would always refer this back to the school DSL for an answer as they are far more likely to know the family and the relationship. Completely different if the child has made an allegation about a family member to a member of staff.

CPOMS can be used in different ways in different schools, so cannot apply a blanket refusal to a request to view CPOMS.

Service - I have spoken to James about the meeting today, the concerns raised and what is included in the SLA. He will contact you to discuss further.

I will send a separate email about the data walk (making the rounds).

I look forward to hearing from you regarding the remaining visits. Just to advise the next one is due on the 5th June - as this is the first day back after half term, if you could please advise me before this Friday that would be really helpful.

I was also going to speak to you about the ticket #6176 that you have open regarding staff from the Great Bookham School being able to see the trust course information. My last update on the 12th May asked who those members of staff are. As everyone has an @sfet.org.uk email address, we as a company, cannot determine which employee should be under which school, so need you to please identify them :

<https://dataprotection.education/tools/add-ticket/view-ticket/6176-dashboard>

I apologise if I have missed anything from the conversation, so please advise me if that is the case.

If you have any further queries, please do not hesitate to contact me using the contact details below, alternatively, please email dpo@dataprotection.education if it is an urgent request, or log a ticket via the Knowledge Bank. Details of how to contact us for support, subject access requests, data breaches and FOI's: <https://dataprotection.education/best-practice-update/315-how-to-contact-us-for-support>

Many thanks,

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